

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KENNETH WALSTON and TRACY WILSON,

**SUMMONS TO THE
COMPLAINT**

Plaintiffs,

Index:

-against-

Basis of Venue: occurrence of
incident – 103 Nostrand Avenue,
Brooklyn, New York (Marcy
Projects)

THE CITY OF NEW YORK, P.O. CHRISTOPHER
FRANCIS, Shield # 10068; P.O. ANDREW PAGANO,
Shield # 4561; P.O. KEVIN FORRESTER, Shield # 26915;
and P.O. JOHN DOES # 1-10, the individual defendants sued
individually and in their official capacities,

Defendants.

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To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 6, 2019

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiffs
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900

By: 
MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; P.O. CHRISTOPHER FRANCIS, Shield # 10068; P.O. ANDREW PAGANO, Shield # 4561; P.O. KEVIN FORRESTER, Shield # 26915; and P.O. JOHN DOES # 1-10, P.S.A. 3, 25 Central Ave, Brooklyn, NY 11206 and/or the 79th Precinct, 263 Tompkins Ave, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE KINGS

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KENNETH WALSTON and TRACY WILSON,

COMPLAINT

Plaintiffs,

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-against-

THE CITY OF NEW YORK, P.O. CHRISTOPHER FRANCIS, Shield # 10068; P.O. ANDREW PAGANO, Shield # 4561; P.O. KEVIN FORRESTER, Shield # 26915; and P.O. JOHN DOES # 1-10, the individual defendants sued individually and in their official capacities,

Basis of Venue: occurrence of incident – 103 Nostrand Avenue, Brooklyn, New York (Marcy Projects)

Defendants.

Jury Trial Demanded

-----X

Plaintiffs Kenneth Walston and Tracy Wilson, by and through their counsel,

Michael O. Hueston, Esq., upon information and belief, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiffs seeks relief for the violation of plaintiffs' rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiffs' claims arise from an incident that arose on or about August 18, 2018. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiffs to, among other things: unlawful search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene; conspiracy; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of

costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incidents alleged in this complaint, plaintiffs served upon defendant City of New York Notices of Claim setting forth the name and post office address of plaintiffs, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiffs' demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Defendant City of New York has not requested a physical examination of Plaintiffs. Plaintiffs have participated in 50-H hearings. Plaintiffs have satisfied all conditions precedent for the filing of this action. This action is being commenced within one year and ninety days of the date of the occurrences herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York and individual defendants are subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiffs' state law causes of actions, and plaintiffs' federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Kenneth Walston is a resident of the State of New York, Kings Country, living at 132 Macon Street, Brooklyn, New York 11216.

7. Plaintiff Tracy Wilson is a resident of the State of New York, Kings County, living at 622 Park Avenue, Apt. # 1A, Brooklyn, New York 11206.

8. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

9. At all times relevant, defendant City of New York maintained a police department known as the New York Police Department ("NYPD"), which employed the individual defendants.

10. At all times alleged herein, defendants P.O. Christopher Francis, Shield # 10068; P.O. Andrew Pagano, Shield # 4561; P.O. Kevin Forrester, Shield # 26915; and P.O. John Does # 1-10 were employed as police officers with P.S.A. 3 and/or the 79th Precinct, located in Kings County, New York, or other as yet unknown NYPD assignments, who violated plaintiffs' rights as described herein.

11. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

Incident

12. On August 18, 2018, several police officers operating from the P.S.A. 3 and/or the 79th Precinct located in Kings County, New York, including upon information and belief, the individual defendants P.O. Christopher Francis, Shield # 10068; P.O. Andrew Pagano, Shield # 4561; P.O. Kevin Forrester, Shield # 26915; and P.O. John Does # 1-10 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against the plaintiffs.

13. On August 18, 2018 at approximately 8:00 p.m., at and in the vicinity of 103 Nostrand Avenue, Brooklyn, New York (“the Marcy Projects”), the police without either consent, an arrest warrant, a search warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime unlawfully arrested plaintiffs.

14. The police acted in concert in committing the illegal acts against plaintiffs.

15. Plaintiffs were visiting and socializing at an annual barbecue called “family” or “community” day for the residents and friends of people who live in the Marcy Projects.

16. The police swarmed in the Marcy Projects courtyard without a warrant or cause and began abusing people.

17. Once the police came to the Marcy Projects plaintiffs were not free to disregard the defendants’ questions, walk away or leave the scene.

18. The police rushed plaintiffs.

19. The police grabbed plaintiffs.

20. The police were abusive, rude, and threatened plaintiffs.

21. Plaintiff Kenneth Walston was trying to film acts of police misconduct, when the police charged at him.

22. The police grabbed plaintiff Kenneth Walston’s phone, pulled his arms behind his back, placed excessively tight handcuffs on his wrists, slammed him into a fence after he was handcuffed, slammed him to the ground after he was handcuffed and continued to use physical force against him, including standing or pressing their weight against him, before shoving him into a police vehicle.

23. The police's use of excessive force caused Kenneth Walston physical injuries, including contusions, lacerations, swelling, bruises, pain, and a sprain to his foot.

24. Plaintiff Kenneth Walston complained about the tightness of the handcuffs to the police and about the police's misconduct, but the police failed to loosen the handcuffs.

25. The police rushed plaintiff Tracy Wilson and shoved and slammed him to the ground repeatedly.

26. The police's use of excessive force caused Tracy Wilson physical injuries, including pain, swelling and the fracturing of his clavicle.

27. Plaintiff Tracy Wilson was not formally arrested and the police brought no charges against him.

28. The police transported plaintiff Kenneth Walston to P.S.A. 3 and processed his arrests.

29. The police transported plaintiff Kenneth Walston to Brooklyn Central Booking for arraignment.

30. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by police reports, false sworn complaint(s) and/or conversations, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes, and the District Attorney prosecuted plaintiff Kenneth Walston for various charges, including obstruction of governmental administration and resisting arrest.

31. The case against plaintiff Kenneth Walston was adjourned in contemplation of dismissal.

32. The plaintiffs were humiliated and embarrassed by the experience.

33. The plaintiffs suffered physical injuries and emotional injuries.

General Allegations

34. Plaintiffs did not resist arrest at any time during the above-described incidents.

35. Plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

36. The individual defendants did not observe plaintiffs violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

37. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights.

38. As a direct and proximate result of defendants' actions, plaintiffs experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

39. Plaintiffs are entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiffs' rights.

FIRST CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

40. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

41. Defendants unlawfully searched and seized plaintiffs without a warrant, cause, consent, and/or beyond the scope of any warrant.

42. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)**

43. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

44. Defendants unlawfully searched and seized plaintiffs without a warrant, cause, consent, and/or beyond the scope of any warrant.

45. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under New York State law.

THIRD CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

46. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Defendants falsely arrested plaintiffs without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

48. Accordingly, defendants are liable to plaintiffs for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FALSE ARREST UNDER STATE LAW)

49. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Defendants falsely arrested plaintiffs without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

51. Accordingly, defendants are liable to plaintiffs for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

52. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

53. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

54. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs.

55. Those defendants who did not touch plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

56. Accordingly, the defendants are liable to plaintiffs for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM**(ASSAULT)**

57. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

58. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiffs placed them in fear of imminent harmful and offensive physical contacts.

59. Accordingly, defendants are liable to plaintiffs under New York State law for assault.

SEVENTH CLAIM**(BATTERY)**

60. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

61. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiffs were illegal physical contacts.

62. Accordingly, defendants are liable to plaintiffs under New York State law for battery.

EIGHTH CLAIM**(FAILURE TO INTERVENE)**

63. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

64. Defendants had a reasonable opportunity to prevent the violations of plaintiffs' constitutional rights, but they failed to intervene.

65. Accordingly, the defendants are liable to plaintiffs for failing to intervene to prevent the violation of plaintiffs' constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM

(CONSPIRACY)

66. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

67. Defendants are liable to plaintiffs because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiffs under 42 U.S.C. § 1983.

TENTH CLAIM

(MONELL CLAIM)

68. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

69. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

70. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiffs: (1) arresting innocent persons in order to meet productivity goals; (2) using unreasonable force on individuals; and (3) fabricating evidence against innocent persons.

71. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

72. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

73. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

74. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

75. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

76. The City's failure to act resulted in the violation of plaintiffs' constitutional rights as described herein.

ELEVENTH CLAIM

(RESPONDEAT SUPERIOR)

77. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

78. The individual defendants were acting within the scope of their employment when they committed the above-described acts against plaintiffs, including falsely arresting, assaulting, battering, and maliciously prosecuting plaintiffs.

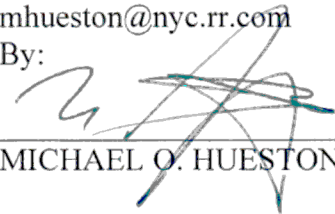
79. The City of New York is therefore vicariously liable to plaintiffs under New York State law for the aforesaid torts.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
November 6, 2019

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiffs
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com

By:


MICHAEL O. HUESTON, ESQ.

VERIFICATION

I, TRACY WILSON, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.

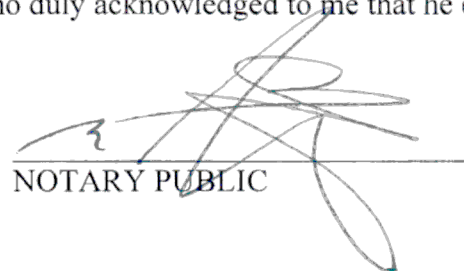

TRACY WILSON

STATE OF NEW YORK)

: SS:

COUNTY OF KINGS)

On the 6th day of November, 2019, before me personally came and appeared TRACY WILSON to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

MICHAEL O HUESTON
Notary Public, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2022

VERIFICATION

I, KENNETH WALSTON, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.

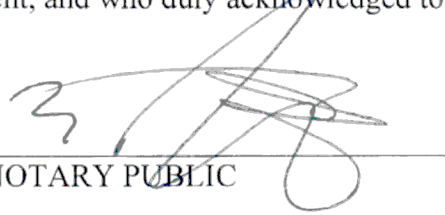

KENNETH WALSTON

STATE OF NEW YORK)

: SS:

COUNTY OF KINGS)

On the 6th day of November, 2019, before me personally came and appeared KENNETH WALSTON to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

MICHAEL O HUESTON
Notary Public, State of New York
No. 02HU8073803
Qualified in Kings County
Commission Expires April 22, 2022

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

KENNETH WALSTON, et al.,

Plaintiffs,

-against-

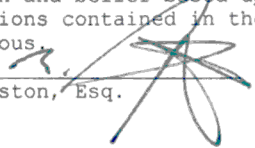
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiffs
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 11/06/2019 Signature: 
Michael O. Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2019

....., Esq.

Attorney for.....